

Our Ref: ADV-2229668/CI-1162053

14 January 2026

Mr Barran Dodger
36 Aston Martin Drive
GOULBURN NSW 2580

Dear Mr Dodger

Help with your legal problem

I spoke with you on 14 January 2026 about your legal problem with the Public Guardian including having Guardianship Orders in place.

You told me that:

- Guardianship Orders have been in place since October 2025 after you were homeless and then admitted to a mental health facility.
- You are not happy with the Orders and the Public Guardian as they had impacted your health and ability to relocate to Sydney to be with your Partner and Church.
- Your NDIS Support Coordinator has located appropriate Supported Independent Living in the Sydney Metro area.
- The Public Guardian has indicated a verbal "NO" but you believe your support services are still working collaboratively behind the scenes to progress the matter.
- That you were waiting on NCAT to get back to you with a listing date for a review and that you wanted help and representation for NCAT proceedings.

I told you:

- That it is probably best to focus on the issue of new accommodation proposal first. That by going through this process you may not need an application to NCAT as the Public Guardian may agree to the new accommodation proposal and allow you to relocate to Sydney area.
- That this process allows you to review the decision of the Public Guardian if they ultimately do not agree or approval with the relocation. Please note that as mentioned above, your right of review **must be submitted within 28 days of the decision.**
- If the Public Guardian refuses the proposal to relocate to a new Supported Accommodation provider, I suggest you seek further legal advice.
- In relation to a review of the Order before NCAT, that it is probably best to leave that until the outcome of the new proposal is made by the Public Guardian.
- Also, if you apply for a review there are two ways to secure representation. One is by asking the Tribunal for a Separate Representative, which is not subject to Legal Aid Merit or Means Policies, or alternatively, by making an application for a grant of aid for a direct representative which is subject to our means and merit policies.
- That on current medical evidence you have provided it is unlikely you would satisfy the merit test.

- Finally, in relation to your restrictions, as you had been respectful, polite and calm throughout the advice appointment, I will be providing feedback to the Unit that reviews whether your restrictions are continued or not.

What I have done is include the following information which will assist you with your next steps.

Public Guardian. I have attached the following information about proposals and review:

- Form – Proposal to the Public Guardian;
- Fact Sheet – Understanding our Role;
- Fact Sheet – Accommodation Function;
- Fact Sheet – How I ask for a review of a decision;
- Fact Sheet – How to make a complaint.

Application to Review Guardianship. I have attached the following documents:

- Form – Request to review guardianship order (2 copies);
- Fact Sheet – What is a Guardianship Order;
- Fact Sheet – Review of guardianship order;
- Fact Sheet – Ending or changing your guardianship order;
- Fact Sheet – Making an application about yourself;
- Fact Sheet – Information for Applicants.

If there are any developments in proposing to the Public Guardian your new accommodation and/or an official rejection you can seek further advice by contacting Legal Aid NSW for an appointment.

I take this opportunity to wish you all the best.

Yours sincerely

Peter Tudor
Solicitor